

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVON HAMILTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, individually and
officially in their capacities as New York City
police officers, JOHN AVELLINO, EDIN
BACOVIC, and JOHN or JANE DOE 1-10,

Defendants.
-----X

Index No.

Plaintiff designates
Bronx County as the place of trial

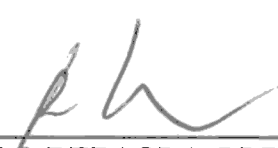
The basis of the venue is where the
injury occurred

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
December 16, 2019



SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff(s)

42-40 Bell Boulevard - Suite 201

Bayside, New York 11361

T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer JOHN AVELLINO
Shield # 26918, Tax ID 958273
At 48th Precinct
450 Cross Island Expressway
Bronx, New York 10457

Police Officer EDIN BACOVIC
Shield # 4993, Tax ID 960189
At 48th Precinct
450 Cross Island Expressway
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DAVON HAMILTON,

Plaintiff,

-against-

Index No.

THE CITY OF NEW YORK, individually and
officially in their capacities as New York City
police officers, JOHN AVELLINO, EDIN
BACOVIC, and JOHN or JANE DOE 1-10,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff, Davon Hamilton, by his attorneys, Sim & DePaola, LLP, for his complaint
against the above Defendants, City of New York, individually and officially in their capacities as
New York City police officers, and John and/or Jane Doe 1-10, alleges and states as follows:

1. This is a civil rights action in which Plaintiff seeks relief through 42 U.S.C. §§ 1983 and 1988 for the violations of his civil rights protected by Constitution of the United States and the Constitution and laws of the State of New York.
2. Plaintiff's claims arise from an October 11, 2018 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiff. As a direct and proximate results, Plaintiff was unlawfully detained within New York City Police Department, within the jurisdictional confines of Bronx County, New York. Plaintiff was deprived of his liberty for approximately three (3) days and suffered serious physical and emotional injuries. He was maliciously prosecuted, until the dismissal of all charges, on December 12, 2018.

3. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

4. Plaintiff, Davon Hamilton ("Mr. Hamilton"), resides at 480 East 176th Street, County of Bronx, City and State of New York.

5. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

6. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

7. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

8. Defendant John Avellino ("Avellino") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Avellino was, at the time relevant herein, a police officer under Shield 26918 and Tax ID 958273 in the NYPD, located at 450 Cross Island Expressway, Bronx, New York 10457. Defendant Avellino is being sued in his individual and official capacities.

9. Defendant Edin Bacovic (“Bacovic”) was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Bacovic was, at the time relevant herein, a police officer under Shield 4993 and Tax ID 960189 in the NYPD, located at 450 Cross Island Expressway, Bronx, New York 10457. Defendant Bacovic is being sued in his individual and official capacities.
10. At all times relevant Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, were detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.
11. At all times relevant Defendants John and/or Jane Doe 1-10, were detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.
12. At all times relevant herein, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, are being sued in their individual and official capacities.
13. At all times here mentioned, Defendants, including Avellino and Bacovic, and John and/or John Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

14. On October 11, 2018 at approximately 11:50 P.M., Plaintiff was in the vicinity of the front of his residence, 507 East 176th Street, in the County of Bronx, State of New York.

15. On said date, time and location, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, illegally entered the above-mentioned location.

16. On said date, time and location, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, illegally searched the said location.

17. At all relevant times, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, did not have arrest warrants for Plaintiff.

18. At all relevant times, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, did not provide full and truthful facts, regarding the likely presence of weapons, controlled substance firearms and ammunition to the District Attorney's Office or the Presiding Judge to justify the issuing of a valid search warrant.

19. At all relevant times, Defendants, including Avellino and Bacovic and John and/or Jane Doe 1-10, intentionally provided said false or fabricated information that would be likely to influence a prosecutors employed by the District Attorney's Office to wrongfully prosecute the Plaintiff, namely that Plaintiff was observed to be arrested and searched, so that a criminal prosecution would be initiated against Plaintiff.

20. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, fabricated the fact that said illicit items were recovered at all or fabricated the locations where said items were recovered, so that they could falsely implicate Plaintiff of various crimes that Defendants knew his to be innocent of.

21. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, entered said

location with the intentions of finding any weapons, controlled substance, firearms and ammunition on Plaintiff but however, failed to find anything illegal on his person or his reach.

22. Plaintiff was not in actual, constructive, or statutory possession of weapons, controlled substance, firearms, and ammunition and had not committed any crime or violation of the law.

23. Plaintiff had multiple assaults and batteries, committed to his person, by Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, including but not limited to, being placed in handcuffs too tightly.

24. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, falsely claimed they found weapons, controlled substance, firearms and ammunition, despite being fully aware that no such event or occurrence ever transpired in reality.

25. At no time did Plaintiff possess any weapons, controlled substance, firearms and ammunition.

26. Defendants', including Avellino and Bacovic, and John and/or Jane Doe 1-10, knowingly and intentionally made false statements and allegations against the Plaintiff and thus, Plaintiff was falsely arrested and charged with possession of weapons, controlled substance, firearms and ammunition that Defendants knew to be false since Plaintiff was not in criminal possession of any contraband.

27. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, were fully aware that Plaintiff did not have any illegal contraband on his person or in his possession, but Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, knowingly and intentionally decided to fabricate said observation to justify an otherwise invalid arrest and to ensure that Plaintiff was maliciously prosecuted.

28. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, arrested and initiated a criminal prosecution against Plaintiff, not because Defendants believed Plaintiff to be guilty of any crime or violation of the law, but because of their desire to compel Mr. Pap Centroid, who was their true target and suspect, to plead guilty, in retribution for his prior successful lawsuit against Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10.

29. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, ensured Mr. Centroid's cooperation by fabricating false evidence against Plaintiff, namely that he was observed to be in possession of weapons, controlled substance, firearms and ammunition.

30. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, further ensured that Plaintiff would be falsely inculpated by fabricating the locations in which the illicit weapons, controlled substance, firearms and ammunition were discovered.

31. Plaintiff was rear handcuffed by Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, and placed in a NYPD vehicle to be transported to NYPD 48th precinct.

32. Upon arrival at said location or while Plaintiff remained detained at the NYPD precinct, he was illegally searched, including a strip-search with cavity inspection, questioned, photographed and fingerprinted by, or at the direction of Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10.

33. Defendant John Avellino was Plaintiff's arresting officer and signed his criminal court complaint under Arrest #B18646135 and Criminal Docket #2018BX0340171, knowingly and falsely accusing Plaintiff of Criminal Possession of a Weapon in the second degree, Criminal Possession of a Controlled Substance in the seventh degree, Criminal Possession of a Firearm and other related charges, all of which Defendants Avellino and Bacovic knew to be untrue.

34. Defendants Avellino and Bacovic directly participated in and/or directed that the unfounded criminal investigation proceed against Plaintiff take place, so that he could exact retribution upon Mr. Pap Centroid for his prior successful civil lawsuit against him and which contributed to the disciplinary action levied against him, as well as his forced and involuntary assignment to the Bronx Criminal Court Section, a well know depository for unfit NYPD officers and detectives, such as Defendants Avellino and Bacovic.

35. Plaintiff was arraigned and formally charged with one (1) count of Criminal Possession of a Weapon in the second degree, one (1) count of Criminal Possession of a Controlled Substance in the seventh degree and one (1) count of Criminal Possession of a Firearm.

36. At no point did the Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, ever observe Plaintiff possessed weapons, controlled substance, firearms and ammunition.

37. At no point were the Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, ever told by any witnesses that Plaintiff committed any crime or violation of the law.

38. After his arraignment, Plaintiff was transferred to New York City Police Department, where she was unlawfully detained until his eventual release on, or about, October 13, 2018.

39. Plaintiff was compelled to return to court, multiple times, to contest the false charges levied against him, including Criminal Possession of a Weapon in the second and fourth degree, Criminal Possession of a Controlled Substance in the seventh degree, Criminal Possession of a Firearm, and Possession of Ammunition.

40. On December 12, 2018, all charges against Plaintiff were unconditionally dismissed by Hon. M. Martin, pursuant to CPL § 160.50, representing a termination of the criminal charges in Plaintiff's favor.

41. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, did not possess a valid, judicially authorized arrest warrant for Plaintiff.

42. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiff's person.

43. Defendants, including Avellino and Bacovic, and John or Jane Doe 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime, as Defendants Avellino and Bacovic were fully aware that any evidence against Plaintiff was either fraudulent or fabricated, including the observation provided by Defendant Bacovic, in which Plaintiff falsely accused of possessing weapons, controlled substance, firearms and ammunition of said location.

44. While Plaintiff was unlawfully detained, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Possession of a Weapon in the second and fourth degree, Criminal Possession of a Controlled Substance in the seventh degree, Criminal Possession of a Firearm, and Possession of Ammunition.

45. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely entering a residence illegally without a search warrant, arresting an individual without probable cause.

46. Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against Plaintiff.

47. At all times relevant hereto, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause or using excessive force to effectuate his arrest.

48. At all times relevant hereto, Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants Avellino and Bacovic observed others doing so, all in furtherance of Plaintiff's wrongful arrest and subsequent malicious criminal prosecution.

49. Plaintiff asserts that the Defendants, including Avellino and Bacovic, and John and/or Jane Doe 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

50. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full

and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

51. In a report by *NBC Channel 4 News, New York*, entitled “Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times,” by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer by NYPD and his criminal case is presently being prosecuted by the United States Attorney’s Office for the Southern District of New York. Another article from *citylimits.org*, entitled “CityViews: Is NYPD Oversight Really making Homeless Shelters Safer,” by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

52. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD’s obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD’s alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

53. On March 18, 2018, *The New York Times* published an explosive article, entitled “Promotions, Not Punishments for Officers Accused of Lying,” written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD’s persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers’ intentionally false statements, with some allegations coming from federal and state judges.

54. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled “Officers Said They Smelled Pot. The Judge Called Them Liars.” Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD’s failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

55. On April 24, 2019, *The New York Times* published an article, entitled “Detective’s Lies Sent Three People to Prison, Prosecutors Charge,” by Sean Piccolo, detailing the lies of NYPD

Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

56. Other articles include: (i) "Testilying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

57. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled "2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D." This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols.

The report further impugned the NYPD's commitment to combat the prejudices and the biases exhibited by many of its officers.

58. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiff's arrest without probable cause.

59. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

60. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

61. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

62. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

63. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Blair, John or Jane Doe 1-10.

64. As a direct and proximate result of the acts of Defendants, including the City, whose including Blair, John or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Unlawful Search and Seizure Under
New York State Law

65. Plaintiff re-alleges and re-avers Paragraph 1 through 67 of this Complaint as if fully set forth herein.

66. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

67. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

68. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

69. The unreasonable searches and seizures to plaintiff's person and property were not otherwise privileged.

70. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

71. Defendant City of New York, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

72. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search and Seizure Under
42 U.S.C. § 1983 Against Individual Defendants

73. Plaintiff re-alleges and re-avers Paragraph 1 through 75 of this Complaint as if fully set forth herein.

74. Defendants subjected plaintiff and property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

75. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

76. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

77. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

78. Accordingly, Defendants violated plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution and Article I, Section 12, of the New York State Constitution.

79. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

80. Plaintiff re-alleges and re-avers Paragraph 1 through 82 of this Complaint as if fully set forth herein.

81. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.

82. Plaintiff was conscious of his confinement.

83. Plaintiff did not consent to his confinement.

84. Plaintiff's arrest and false imprisonment was not otherwise privileged.

85. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

86. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

87. Plaintiff re-alleges and re-avers Paragraphs 1 through 89 of this Complaint as if fully set forth herein.

88. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

89. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

90. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

91. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Assault and Battery Under
New York State Law

92. Plaintiff re-alleges and re-avers Paragraph 1 through 88 of this Complaint as if fully set forth herein.

93. Defendants made Plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

94. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without him consent.

95. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

97. Plaintiff re-alleges and re-avers Paragraphs 1 through 99 of this Complaint as if fully set forth herein.

98. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

99. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

100. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

101. Plaintiff re-alleges and re-avers Paragraph 1 through 103 of this Complaint as if fully set forth herein.

102. Defendants initiated the prosecution against Plaintiff.

103. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

104. Defendants acted with malice.

105. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

106. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

108. Plaintiff re-alleges and re-avers Paragraphs 1 through 110, of this Complaint as if fully set forth herein.

109. Defendants initiated the prosecution against Plaintiff.

110. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.

111. Defendants acted with malice.

112. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.

113. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.

114. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
New York State Law

115. Plaintiff re-alleges and re-avers Paragraphs 1 through 117 of this Complaint as if fully set forth herein.

116. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

117. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on her liberty and freedom of movement.

118. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

119. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

121. Plaintiff re-alleges and re-avers Paragraphs 1 through 123 of this Complaint as if fully set forth herein.

122. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

123. Defendants' actions deprived Plaintiff of his right to a fair trial and caused post-arraignment restrictions to be imposed on his liberty and freedom of movement, including his post-arraignment detainment.

124. Accordingly, Defendants violated Plaintiff's right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

125. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

126. Plaintiff re-alleges and re-avers Paragraphs 1 through 128 of this Complaint as if fully set forth herein.

127. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

128. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

130. Plaintiff re-alleges and re-avers Paragraphs 1 through 132 of this Complaint as if fully set forth herein.

131. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

132. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

133. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

134. Plaintiff re-alleges and re-avers Paragraph 1 through 136 of this Complaint as if fully set forth herein.

135. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

136. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

137. Defendants intended to inflict substantial harm upon Plaintiff.

138. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

141. Plaintiff re-alleges and re-avers Paragraph 1 through 143 of this Complaint as if fully set forth herein.

142. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

143. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

144. Defendants intended to inflict substantial harm upon Plaintiff.

145. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

146. Defendants' actions deprived Plaintiff of his constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.

147. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

148. Plaintiff re-alleges and re-avers Paragraph 1 through 150 of this Complaint as if fully set forth herein.

149. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee Defendants.

150. Defendant City breached those duties of care.

151. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

152. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.

153. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiff.

154. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

155. Plaintiff re-alleges and re-avers Paragraph 1 through 157 of this Complaint as if fully set forth herein.

156. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

157. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

158. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

159. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

160. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

161. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States, pursuant to the Fourth, Sixth and Fourteenth Amendments.

162. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- q) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- r) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988; Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: December 16, 2019

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'P. Sim', is written over a horizontal line.

SIM & DEPAOLA, LLP

By: Peter Sim, Esq.

Attorneys for Plaintiff

42-40 Bell Blvd - Ste 201

Bayside, New York 11361

T: (718) 281-0400

F: (718) 631-2700

ATTORNEY VERIFICATION

I, Peter Sim, an attorney admitted to practice in the courts of New York State, state that I am an partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
December 16, 2019



PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DAVON HAMILTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, individually and
officially in their capacities as New York City
police officers, JOHN AVELLINO, EDIN
BACOVIC, and JOHN or JANE DOE 1-10,

Defendants

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

BY: PETER SIM

Attorney for Plaintiff

42-40 Bell Boulevard

Bayside, NY 11361

Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for